

1 _____ BILL NO. _____

2 INTRODUCED BY _____

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4 A BILL FOR AN ACT ENTITLED: "AN ACT PROVIDING GUIDELINES FOR THE TIMELY ISSUANCE OF
5 ORDERS IN PARENTING PROCEEDINGS; AND AMENDING SECTION 40-4-211, MCA."

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7 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

8

9 **Section 1.** Section 40-4-211, MCA, is amended to read:

10 **"40-4-211. Jurisdiction -- commencement of parenting proceedings.** (1) A court of this state
11 competent to decide parenting matters has jurisdiction to make a parenting determination by initial or amended
12 decree if:

13 (a) this state:

14 (i) is the home state of the child at the time of commencement of the proceedings; or

15 (ii) had been the child's home state within 6 months before commencement of the proceedings

16 and the child is absent from this state because of the child's removal or retention by any person and a parent or
17 person acting as parent continues to live in this state; or

18 (b) it is in the best interest of the child that a court of this state assume jurisdiction because:

19 (i) the child and the parents or the child and at least one contestant have a significant connection
20 with this state; and

21 (ii) there is available in this state substantial evidence concerning the child's present or future care,
22 protection, training, and personal relationships; or

23 (c) the child is physically present in this state and:

24 (i) has been abandoned, including being surrendered to an emergency services provider as
25 provided in 40-6-405;

26 (ii) has been with a caretaker relative who has been awarded continuing custody pursuant to 40-6-
27 602; or

28 (iii) it is necessary in an emergency to protect the child because the child has been subjected to or

1 threatened with mistreatment or abuse or is neglected or dependent; or

2 (d) (i) no other state has jurisdiction under prerequisites substantially in accordance with
3 subsection (1)(a), (1)(b), or (1)(c) or another state has declined to exercise jurisdiction on the ground that this
4 state is the more appropriate forum to determine parenting of the child; and

5 (ii) it is in the child's best interest that the court assume jurisdiction.

6 (2) Except under subsections (1)(c) and (1)(d), physical presence in this state of the child or of the
7 child and one of the contestants is not alone sufficient to confer jurisdiction on a court of this state to make a
8 parenting determination.

9 (3) Physical presence of the child, while desirable, is not a prerequisite for jurisdiction to determine
10 parenting of the child.

11 (4) A parenting plan proceeding is commenced in the district court:

12 (a) by a parent, by filing a petition:

13 (i) for dissolution or legal separation;

14 (ii) for parenting in the county in which the child is permanently resident or found; or

15 (iii) for custody under 40-6-411; or

16 (b) by a person other than a parent if the person has established a child-parent relationship with
17 the child, by filing a petition for parenting in the county in which the child resides or is found.

18 (5) Notice of a parenting proceeding must be given to the child's parent, guardian, caretaker, those
19 persons with whom the child is physically residing, and all other contestants, who may appear, be heard, and
20 file a responsive pleading. The court, upon a showing of good cause, may permit intervention of other
21 interested parties.

22 (6) In a parenting plan proceeding under Title 40, chapter 4:

23 (a) orders issued by the district court must be timely filed in accordance with the facts and
24 circumstances of each individual case;

25 (b) orders involving stipulated matters must be granted as soon as reasonably practicable unless,
26 on review, the district court determines there is a need to modify or deny the stipulation; and

27 (c) following the submission of all evidence in a disputed matter or trial and, if requested, the
28 submission of any proposed order or proposed findings, the district court shall strive to issue a decision within

1 30 days. If an order has not been issued after 30 days, a party may file a reminder notifying the district court
2 that a matter remains pending and of the importance the pending matter is to the parties.

3 ~~(6)~~(7) For purposes of subsection (4)(b), "child-parent relationship" means a relationship that:

4 (a) exists or did exist, in whole or in part, preceding the filing of an action under this section, in
5 which a person provides or provided for the physical needs of a child by supplying food, shelter, and clothing
6 and provides or provided the child with necessary care, education, and discipline;

(b) continues or existed on a day-to-day basis through interaction, companionship, interplay, and mutuality that fulfill the child's psychological needs for a parent as well as the child's physical needs; and

9 (c) meets or met the child's need for continuity of care by providing permanency or stability in
10 residence, schooling, and activities outside of the home.

11 ~~(7)~~(8) A custody proceeding under 40-6-411 is commenced in the district court by a parent by filing in
12 one of the following counties:

13 (a) the county where the newborn is located if the parent knows where the newborn is;

14 (b) the county where the emergency services provider to whom the newborn was surrendered is
15 located if subsection (7)(a) (8)(a) does not apply; or

16 (c) the county where the biological parent is located if neither subsection (7)(a) or (7)(b) (8)(a) or
17 (8)(b) applies."

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